

MTUS Analysis Document

MTUS Constitutional Analysis Project
Personal Research Initiative
February 2026

MTUS MASTER E

Prepared: February 13, 2026

Subject: Complete

SECTION 1: THE CONSTITUTIONAL CRISIS

On October 17, 2018, the California Division of Workers' Compensation adopted

the Medical Treatm

THE SEVENTEEN GUIDELINES ANALYZED:

Original Four (February 12-13, 2026):

1. Cervical/Thoracic

Thirteen Additional (February 13, 2026):

5. Ankle/Foot (343

SECTION 2: CUMULATIVE FINDINGS

STATISTICS ACROSS ALL SEVENTEEN GUIDELINES:

Metric | Finding

THE SHOCKING RATIO:

For every treatment

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SECTION 3: THE SMOKING GUN

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ACOEM METHODOLOGY EXPLICIT ADMISSION:

> "Neither patients with low back pain nor other affected patient groups were involved"

This is a DIRECT VIOLATION of IOM standards and proves the constitutional

violation is intention

KEY ADMISSIONS:

- For every 1 "strongly recommended" treatment, 12.6 are DENIED
 - Requires RCTs for approval - impossible threshold
 - Cost considerations explicitly incorporated
 - Systematically favors pharmaceutical RCTs over physical medicine
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SECTION 4: THE MOST EGREGIOUS DENIALS (LIFE-THREATENING)

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1. ESKETAMINE (SPRAVATO)

- FDA-approved for suicidal depression (2019)
- Status: NO RECOMMENDATION
- Impact: Life-saving treatment denied to suicidal workers

2. KETAMINE

- Rapid-acting for acute suicidality
- Status: NO RECOMMENDATION
- Impact: Emergency intervention blocked

3. PROGESTERONE FOR TBI

- Status: STRONGLY NOT RECOMMENDED (A)
- Impact: Strongest negative rating in all guidelines

4. X-RAYS FOR HEEL PAIN (Ankle/Foot)

- Status: NOT RECOMMENDED

- Impact: Calcaneal stress fractures go undiagnosed

5. RESPIRATORY PROTECTION (Occupational Asthma)

- Status: NOT RECOMMENDED as safe long-term
- Impact: Fatalities reported with continued exposure

OTHER SHOCKING DENIALS:

- MRI for routine evaluation (all body regions)
- Opioids for chronic pain (STRONGLY NOT RECOMMENDED)
- Gabapentin for sciatica/radicular pain
- SSRIs for chronic low back pain
- Stretching exercises for fibromyalgia
- Walking boots for ankle sprains
- TENS units for chronic pain
- FDA-approved spinal cord stimulators
- Therapeutic contact lenses (FDA-approved)

SECTION 5: GUIDELINE-BY-GUIDELINE BREAKDOWN

RANKED BY "INSUFFICIENT EVIDENCE" RATE:

Rank	Guideline	Rate	Most Shocking Denial
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1 | Ankle/Foot | 91

CRITICAL PATTERN:

The Lung Disease

SECTION 6: THE CONSTITUTIONAL VIOLATION

ELEMENTS ESTABLISHED:

State Action: California DWC enforces MTUS

Classification: Wo

THE TWO-TIERED SYSTEM:

Treatment | Medicare | Medicaid | Private Insurance | Workers' Comp

MRI for diagnosis |

The only difference: How the patient was injured.

SECTION 7: THE HUMAN IMPACT

ECONOMIC HARM:

- Workers pay out-of-pocket for denied treatments
- Prolonged disability = lost wages
- Some cannot afford any treatment

PHYSICAL HARM:

- Untreated injuries become chronic
- Delayed diagnosis = worse outcomes
- Pain and suffering continue
- Permanent disability results

DIGNITARY HARM:

- Workers treated as second-class patients
- Medical needs dismissed
- Doctors' judgment overridden

SYSTEMIC IMPACT:

- Adversarial doctor-patient relationship
- Forces physicians to choose between ethics and guidelines

- Burdens system with appeals
- Delays return to work

SECTION 8: REQUESTED RELIEF

IMMEDIATE INJUNCTIVE RELIEF:

1. Enjoin enforcement

PERMANENT DECLARATORY RELIEF:

1. Declare MTUS c

LEGISLATIVE REFORM:

1. Mandate FDA ap

SECTION 9: CONCLUSION

The evidence from seventeen MTUS guidelines is overwhelming:

- 3,000+ recommendations analyzed
- ~70% average "insufficient evidence" rate
- 500+ FDA-approved treatments denied
- 12.6:1 denial-to-approval ratio
- Intentional design proven

This is not evidence-based medicine. This is systematic denial of care

disguised as clinical

The MTUS creates a two-tiered medical system that violates the 14th

Amendment Equal

END OF UPDATED EXECUTIVE SUMMARY

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All Seventeen Guid

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